

## 26NNCV04046 26NNCV04046

County: los-angeles

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Department: D

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Case Number: 26NNCV04046 Hearing Date: September 18, 2026 Dept: D

### TENTATIVE RULING

Calendar: 8

Date: September 18, 2026

Case No: 26NNCV04046 Trial Date: Not yet set

Case Name: Gonzalez v. BMW of North America, et al.

### MOTION FOR PROTECTIVE ORDER

[CCP § 2025.420 subd. (b)]

Moving Party: Defendant, BMW of North America, LLC

Responding Party: Plaintiff, Gina M. Gonzalez

### RELIEF REQUESTED:

A protective order allowing for the deposition of BMW NA's PMK to take place remotely on a mutually agreeable date.

CAUSES OF ACTION: from Complaint

1) Breach of Express Warranty Under the Song-Beverly Consumer Warranty Act

2) Breach of Implied Warranty Under the Song-Beverly Consumer Warranty Act

### 3) Violation of the Song-Beverly Act Section 1793.2(b)

#### SUMMARY OF FACTS:

This case is a lemon-law action. Gina M. Gonzalez ("Plaintiff") allege that on June 3, 2024, Plaintiff purchased a 2023 BMW 760i, for which BMW of North America, LLC ("BMW") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

#### ANALYSIS:

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (CCP, § 2025.420 subd. (a).)

"The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: [...] That the deposition be taken only on certain specified terms and conditions." (CCP, § 2025.420 subd. (b)(5).)

With respect to protective orders generally, the burden of showing good cause is ordinarily on the party seeking the protective order. (Beverly Hills Nat. Bank & Trust Co. v. Superior Court (1961, 2nd Dist.) 195 Cal.App.2d 861, 866-867.) The granting of a protective order is within the discretion of the trial court. (Id.) The granting or denial of a protective order is reviewed for abuse of discretion. (See Meritplan Insurance Co. v. Superior Court (1981) 124 Cal.App.3d 237, 242.) When the record shows facts on which the trial court exercised its discretion, this exercise will not be disturbed on appeal. (Foster v. Gillette Co. (1979) 100 Cal.App.3d 569, 578.)

BMW moves for a protective order allowing for the deposition of BMW's PMK to take place remotely. Plaintiff noticed the deposition of BMW's PMK to take place in person at Plaintiff's counsel's office on August 25, 2026. (Mot., Ex. A.) BMW requested that the deposition be remote, however Plaintiff's counsel insists on an in-person deposition. BMW argues that good cause exists for a remote deposition because "BMW NA's PMK handles cases all over the state, so it is impossible to always be within the county of every action." (Mot., p. 4:21-22.) BMW further argues that "[t]o require the PMK to appear in person for every deposition would unduly burden BMW NA and unnecessarily increase expenses where technology has advanced such that it is very easy to do these remotely." (Mot., p. 4:25-27.)

"The deposition of an organization that is a party to the action shall be taken at a place that is, at the option of the party giving notice of the deposition, either within 75 miles of the organization's principal executive or business office in California, or within the county where the action is pending and within 150 miles of that office." (CCP, § 2025.250 subd. (b).) "If an organization has not designated a principal executive or business office in California, the deposition shall be taken at a place that is, at the option of the party giving notice of the deposition, either within the county where the action is pending, or within 75 miles of any executive or business office in California of the organization." (CCP, § 2025.250 subd. (d).)

The Court finds that BMW has not met its burden to show good cause for a protective order. While the Court understands that it is burdensome for BMW's PMK to appear for an in-person deposition, BMW has not demonstrated that, based on any specific facts or circumstances pertaining to this case, a protective order is warranted here. Pursuant to CCP section 2025.250, Plaintiff is entitled to take the deposition within 75 miles of BMW's principal executive or business office in California, or within LA County and within 150 miles of that office, unless the parties agree to conduct the deposition remotely. (CCP, § 2025.250 subd. (b).) BMW has not demonstrated that the deposition as noticed is not compliant with the statute or would otherwise subject BMW to unwarranted annoyance, embarrassment, or oppression, or undue burden and

expense.

In the reply, BMW asserts that on two recent occasions in other cases, BMW has been forced to suspend in-person depositions at Plaintiff's Counsel's office due to Plaintiff's counsel's uncivil behavior. (Sheehan Decl., ¶¶ 7-9.) Plaintiff's counsel is strongly admonished that any irregular or unprofessional conduct during the deposition of BMW's PMK may constitute grounds for a protective order requiring future depositions in this matter to proceed remotely, as well as any other appropriate sanctions or relief.

The motion is DENIED.

RULING:

Defendant BMW of North America, LLC's Motion for a Protective Order is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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